

Baird Trust Order Confirmation Act, 1957

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CHAPTER xiii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Baird Trust. [17th July 1957.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation 26 Geo. 5 & 1 Procedure (Scotland) Act 1936 and it is requisite that the said Edw. 8. c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Baird Trust Order Confirmation Short title. Act 1957.

SCHEDULE

BAIRD TRUST

Provisional Order to extend the powers of the Baird Trust with respect to the investment of the funds belonging to or held by them to amend the provisions of the Baird Trust Order 1939 with respect to the Baird Lecture and otherwise in regard to the management and regulation of the said Trust and for other purposes.

Whereas by the Baird Trust Order 1939 (hereinafter referred to as "the Order of 1939") the Trustees appointed and holding office in pursuance of the trust deed granted by the late James Baird on the twenty-fourth day of July one thousand eight hundred and seventy-three were incorporated by the name of "the Baird Trust" and provision was made for the vesting in the Baird Trust of the property and funds of the said Trustees (hereinafter referred to as "the trust fund") and for the regulation and management of The Baird Trust by the Trustees thereby incorporated (hereinafter referred to as "the Trustees"):

And whereas by section eighteen of the Order of 1939 powers were conferred on the Trustees with respect to the investment of the trust fund but such powers have become unduly restricted and it is expedient that the powers of the Trustees with respect to the investment of the trust fund should be enlarged and extended as provided in this Order:

And whereas by section twenty-one of the Order of 1939 the Trustees were charged with the endowment and management in accordance with the provisions of the said section of a lectureship known as "the Baird Lecture" but owing to changes in circumstances difficulties have arisen with regard to the implementation of the said provisions and it is expedient that the provisions of the Order of 1939 with regard to the endowment and management of the Baird Lecture should be amended as provided in this Order:

And whereas it is expedient that the Order of 1939 should be otherwise amended as provided in this Order:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1.—(1) This Order may be cited as the Baird Trust Order 1957.

(2) This Order and the Baird Trust Order 1939 (hereinafter referred to as "the Order of 1939") may be cited together as the Baird Trust Orders 1939 and 1957.

2. Subject to the provisions of this Order and unless there be something in the subject or context repugnant to such construction terms words and expressions to which meanings are assigned by the Order of 1939 shall have the same meanings respectively in this Order.

3. Subsection (2) of section 9 (Execution of documents with seal) of the Order of 1939 shall be read and have effect as if for the words "and countersigned by the secretary and treasurer" there were substituted the words "or by one Trustee and the secretary and treasurer."

4. Section 18 (Investment of trust fund) of the Order of 1939 Investment is hereby repealed and the Order of 1939 shall be read and have effect of trust fund. as if the following section were inserted therein as section 18 thereof namely:—

“ 18. The Trustees may invest the whole or any part of the trust fund in or upon all or any of the following assets investments securities and obligations (namely):—

- (a) in investments in which trustees are authorised to invest trust funds according to the law of Scotland or the law of England for the time being;
- (b) in the purchase of heritable or real or leasehold property;
- (c) in or upon the public stocks or funds or government securities of any part of Her Majesty's dominions or of the territories under Her protection or of the United States of America;
- (d) in or upon the deposit receipts bonds debentures debenture stock mortgages or securities of any corporation company or body whether municipal railway public utility commercial industrial investment trust mortgage insurance banking or otherwise registered or incorporated in the United Kingdom of Great Britain and Northern Ireland or any part of Her Majesty's dominions or of the territories under Her protection or of the United States of America or in or upon the guaranteed lien preference or preferred or ordinary or deferred or common stocks or shares of any such corporation company or body or upon any securities whatsoever issued or guaranteed by any such corporation company or body and in the case of banks and insurance companies whether or not there is liability for calls or other payments provided that the Trustees may retain and hold any investments which may be transferred to the Trustees notwithstanding that such investments may not be of the nature authorised."

5. Section 21 (The Baird Lecture) of the Order of 1939 is hereby repealed and the Order of 1939 shall be read and have effect as if the following section were inserted therein as section 21 thereof namely:—

“ 21.—(1) In addition to implementing the foregoing objects and purposes the Trustees shall (subject as after-mentioned) annually appropriate out of the revenue of the trust fund the sum of three hundred pounds and shall use such sum to form an endowment fund (hereinafter referred to as “ the endowment fund ”) for the lectureship founded by the Truster and known as and hereinafter referred to as “ the Baird Lecture ”.

(2) The maximum amount of the endowment fund shall be such a sum as the Trustees may from time to time determine provided that if at any time the maximum amount of the endowment fund so determined shall be exceeded by reason of the annual sums appropriated as aforesaid such appropriation shall forthwith be suspended until such time as the amount of the endowment fund shall fall below the said maximum and thereafter such appropriations shall be resumed.

(3) The following terms and conditions shall be attached to the Baird Lecture (namely):—

- (a) The Baird Lecture shall be delivered as often as the Trustees shall from time to time determine but so that in any event not more than five years shall elapse between successive Baird Lectures:
- (b) A lecturer (hereinafter in this section referred to as “the lecturer”) shall be appointed by the Trustees not less than one year before the date fixed by the Trustees for the next Baird Lecture:
- (c) The lecturer shall be a minister of the church who has been ordained for not less than five years or a minister of any other of the Scottish Presbyterian Churches who has been ordained for a similar period in his own church and in making the appointment care shall be taken by the Trustees to choose a man of piety ability and learning who is approved and reputed sound in all the essentials of Christian truth:
- (d) Each Baird Lecture shall consist of a course of not less than six lectures on any subject bearing on theology Christianity church organisation and work or such other kindred subject as the Trustees may decide:
- (e) The Baird Lecture shall be advertised by the Trustees and shall be delivered publicly at such time and at such place as may be appointed by the Trustees:
- (f) (i) Each Baird Lecture shall be published as soon as possible after the completion of the course of lectures of which it is comprised and not later than a date to be fixed by the Trustees;
(ii) Such publication shall be carried out by the lecturer to the satisfaction of the Trustees and save in respect of payment of the cost of such publication as after-mentioned the Trustees shall not incur any liability in consequence of such publication;
(iii) Not less than seven hundred and fifty copies of each Baird Lecture shall be printed and of these there shall be deposited free of charge two copies in the library of each of the Scottish universities two copies in the library of the General Assembly of the Church and of each of the other Scottish Presbyterian Churches and one copy in each of the theological libraries connected with the said universities and the Scottish Presbyterian Church colleges;

(iv) The surplus copies of such publication shall be available for purchase by the public at such price as shall be determined by the Trustees from time to time and the proceeds of the sales thereof shall be received by the Trustees and added to the endowment fund:

(g) All costs incidental to the advertising and delivery of the Baird Lecture and to the publication thereof shall be paid by the Trustees out of the endowment fund:

(h) The lecturer shall be paid out of the endowment fund an honorarium of such sum as the Trustees may from time to time determine and payment of such honorarium shall be made in equal moieties the first moiety being payable to the lecturer on completion of the course of lectures and the second moiety being payable on publication of the Baird Lecture given by him and in addition the lecturer shall be paid such a sum as shall be fixed by the Trustees in respect of the travelling expenses (if any) as have been incurred by him."

6. Section 22 (Application of revenue of trust fund) of the Order of 1939 shall be read and have effect as if the following new subsection were inserted after subsection (1) thereof namely:— Payment
of Trustees'
expenses.

"(1A) In repayment to the Trustees of all travelling hotel and other expenses incurred by them in and about the business of the Trust including their expenses of travelling to and from meetings of the Trustees or of any sub-committee of the Trustees".

7. The costs charges and expenses incurred in connection with the preparation presentation obtaining and confirming of this Order shall be paid by the Trustees out of the revenue of the Trust Fund. Costs of
Order.

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